

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201501199	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 02/18/2015 8:30 PM	Location of Incident: Foster Avenue and Nostrand Avenue	18 Mo. SOL 8/18/2016	Precinct: 67
Date/Time CV Reported Wed, 02/18/2015 9:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 02/18/2015 9:51 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Defalco	02597	953806	PBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eric Stoll	30364	954354	PBBS
2. POM Anthony Mieses	14340	955195	PBBS

Officer(s)	Allegation	Investigator Recommendation
A . POM Scott Defalco	Discourtesy: PO Scott Defalco acted rudely toward § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the Call Processing System on February 18, 2015.

On February 18, 2015, at approximately 8:30 p.m., § 87(2)(b) was driving on Nostrand Avenue in Brooklyn and turned left, allegedly with the use of his turn signal, onto Foster Avenue in Brooklyn. PO Scott DeFalco, PO Eric Stoll, and PO Anthony Miele from Patrol Borough Brooklyn South pulled up behind § 87(2)(b) in a marked police van and stopped him. PO DeFalco told § 87(2)(b) that he would only issue him one summons for driving with an obstructed view, and § 87(2)(b) argued with PO DeFalco about this decision. PO DeFalco then informed § 87(2)(b) that he would issue him an additional summons for failing to utilize his turn signal. PO DeFalco then allegedly threw the two summonses through § 87(2)(b) open car window, and the officers then left the location in their RMP (**Allegation A**) (Encl. 4B).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). On February 27, 2015, a notice of claim request was submitted, and it will be added to the case file upon its return to the agency. [§ 87(2)(b)] [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. 2B).
- PO DeFalco has been a member of the NYPD for two years and has had two prior CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegation A – Discourtesy: PO Scott DeFalco acted rudely toward § 87(2)(b)

It is undisputed that PO DeFalco issued § 87(2)(b) two summonses during the incident. It is also undisputed that PO DeFalco did not place these summonses in § 87(2)(b) hand when issuing them (Encl. 4A-B and Encl. 5E-Q).

§ 87(2)(b) alleged that PO DeFalco issued him two summonses by throwing them through his car window, causing them to land on § 87(2)(b) center console (Encl. 4B). § 87(2)(b) stated that his car window was rolled all the way down and that he was speaking on the phone with the 911 operator to file a complaint against PO DeFalco when PO DeFalco approached with the summonses (Encl. 4C). § 87(2)(b) also stated that PO DeFalco never attempted to hand the summonses directly to him (Encl. 4C). § 87(2)(b) was alone in the car during the incident, and there were no other civilian witnesses (Encl. 4B).

PO DeFalco stated that § 87(2)(b) refused to take the summonses from him and rolled up his car window so that only a small opening remained between the top of the window and the roof of the car (Encl. 5E). PO DeFalco then slid the summonses through this small opening and dropped them, causing the summonses to fall on § 87(2)(b) lap (Encl. 5E). PO Stoll stood directly behind PO DeFalco when PO DeFalco issued the summonses to § 87(2)(b) and PO Stoll did not recall if § 87(2)(b) rolled up his window to prevent PO DeFalco from providing the summonses to him (Encl. 5-K). PO Stoll also stated that he did not see PO DeFalco throw the summonses through the car window (Encl. 5-K). PO Miele stated that he did not see PO DeFalco issue the summonses to § 87(2)(b) because he remained inside of the RMP during the entire incident and was not looking at PO DeFalco (Encl. 5Q). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date